

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Luke Petrinovic	Team: Squad #13	CCRB Case #: 201601324	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 02/08/2016 6:37 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/8/2017	Precinct: 48
Date/Time CV Reported Tue, 02/09/2016 9:00 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 02/18/2016 11:10 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Jason Treglia	05985	926222	048 PCT
2. POM Alexander Javierhernandez	21900	954001	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Jason Treglia	Abuse: PO Jason Treglia stopped § 87(2)(b)	A . Substantiated
B . POM Alexander Javierhernandez	Abuse: PO Alexander Javier-Hernandez stopped § 87(2)(b)	B . Substantiated
C . POM Jason Treglia	Abuse: PO Jason Treglia arrested § 87(2)(b)	C . Substantiated
D . POM Alexander Javierhernandez	Abuse: PO Alexander Javier-Hernandez arrested § 87(2)(b)	D . Substantiated
E . POM Jason Treglia	Force: PO Jason Treglia used physical force against § 87(2)(b)	E . Exonerated
F . POM Jason Treglia	Force: PO Jason Treglia used physical force against § 87(2)(b)	F . Unsubstantiated

Case Summary

On February 9, 2016, § 87(2)(b) filed this complaint over the phone with the Internal Affairs Bureau, on behalf of her § 87(2)(b) son, § 87(2)(b). It was referred to the CCRB, and received on February 18, 2016, under log number 16-5434.

On February 8, 2016, at approximately 6:37 p.m., § 87(2)(b) was walking along § 87(2)(b) in the Bronx. He was with his § 87(2)(b)-old aunt, § 87(2)(b) and his § 87(2)(b)-old sister, § 87(2)(b). § 87(2)(b) was listening to music, and singing along loudly, “Boom, boom, boom,” imitating the sound of gunshots. A marked police car driving down § 87(2)(b) stopped suddenly near the crosswalk as § 87(2)(b) and § 87(2)(b) were about to cross. The car was driven by PO Jason Treglia, and PO Alexander Javier-Hernandez was in the front passenger seat. Both officers are from the 48th Precinct.

The officers got out of the vehicle and approached § 87(2)(b) and asked if he was threatening them (**Allegations A and B**). As § 87(2)(b) responded that he was not threatening them, the conversation between him and the officers became combative. PO Treglia and PO Javier-Hernandez decided to arrest § 87(2)(b) for disorderly conduct (**Allegations C and D**). PO Treglia grabbed him and pulled his arms behind his back. § 87(2)(b) did not voluntarily place his arms behind his back immediately, but did not otherwise resist. As § 87(2)(b) was being placed in handcuffs, he asked § 87(2)(b) to take his cell phone from him. As § 87(2)(b) approached to take the cell phone, PO Treglia reached out with one hand and pushed her back (**Allegation E**). § 87(2)(b) was quickly placed in handcuffs. After that, PO Treglia allegedly pushed § 87(2)(b) against the vehicle, and pushed his head down against the trunk (**Allegation F**). § 87(2)(b) suffered from a swollen face, and pain in his wrists as a result of the force used against him.

§ 87(2)(b) was placed in the vehicle by PO Treglia and PO Javier-Hernandez, and taken to the 48th Precinct stationhouse. § 87(2)(a) FCT § 380.1 § 784

§ 87(2)(b) came to the stationhouse, and § 87(2)(b) was released into her custody. § 87(2)(b)

Mediation, Civil and Criminal Histories

- Due to § 87(2)(b)'s arrest and the fact that he sought medical treatment for injuries received during the incident, this case was ineligible for mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
- As of March 18, 2016, there has been no Notice of Claim filed in connection with this incident (Board Review 02).

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) or § 87(2)(b) (Board Review 03).
- PO Treglia has been the subject of 26 prior allegations of misconduct across twelve cases during his sixteen year tenure with the NYPD. Of these allegations, seven were substantiated:

- In case 200310072, PO Treglia was found to have directed profanity at a civilian, asking him if he “Fucking heard,” another officer that was talking to him. Charges were recommended by the CCRB, and PO Treglia received a command discipline.
- In case 200408918, PO Treglia was found to have detained an individual without probable cause, directed profanity at another by saying, “Shut your fucking mouth,” and issuing a retaliatory summons. § 87(2)(g)

Charges were recommended by the CCRB, and PO Treglia received a command discipline.

- In case 200609940, PO Treglia was found to have unjustly stopped an individual, frisked him, and searched his vehicle. § 87(2)(g)

. Charges were recommended by the CCRB, and PO Treglia was found not guilty at an administrative trial.

There have been seven previous force allegations against PO Treglia that were closed as exonerated, unfounded, unsubstantiated, or closed as part of truncated investigations. There have been ten previous abuse of authority allegations against PO Treglia that were closed as unsubstantiated, exonerated, or closed as part of a truncated investigations (Board Review 04).

- PO Javier-Hernandez has never before been the subject of a CCRB allegation during his three year tenure with the NYPD (Board Review 05).

Potential Issues

- Video footage from a building near the incident location was obtained by the investigation; however, it did not capture the incident.

Findings and Recommendations

Allegation A – Abuse of Authority: PO Jason Treglia stopped § 87(2)(b)

Allegation B – Abuse of Authority: PO Alexander Javier-Hernandez stopped § 87(2)(b)

Allegation C – Abuse of Authority: PO Jason Treglia arrested § 87(2)(b)

Allegation D – Abuse of Authority: PO Alexander Javier-Hernandez arrested § 87(2)(b)

It is not disputed that PO Treglia and PO Javier-Hernandez stopped § 87(2)(b) and § 87(2)(b) gave consistent testimony that they were walking down § 87(2)(b) and § 87(2)(b) gave consistent testimony that they were walking down § 87(2)(b) coming home after getting pizza at a nearby store (Board Review 06, 07, 08). As they walked, § 87(2)(b) was singing along to music he was listening to on headphones. The lyrics of the song he was singing included the phrase, “Boom, boom, boom.” He was singing loudly, but not yelling. They were the only people on the street at the time, aside from one woman across the street who they noticed later. As they passed in their vehicle, PO Treglia and PO Javier-Hernandez stopped, and PO Treglia started asking § 87(2)(b) if he was threatening them. § 87(2)(b) replied that he was just singing, and the officers exited their vehicle and

approached him. They did not ask § 87(2)(b) for identification, but continued to ask him what he was doing. § 87(2)(b) asked whether he was being arrested, and the officers eventually began to arrest him.

PO Treglia and PO Javier-Hernandez both stated that they first stopped and approached § 87(2)(b) because he had been making “simulated gunshot” sounds (Board Review 09, 10). § 87(2)(b) and § 87(2)(b) were the only people in the area. PO Javier-Hernandez believed that the sounds were directed at himself and his partner, and intended to get their attention. PO Treglia was unsure what the intention of the “simulated gunshots” were when he first heard them, but felt threatened by them. He stated in his interview that at the time of the incident he was concerned about shootings of police officers that had occurred in recent months, and that the area of § 87(2)(b) itself was a “difficult” area for police, as many calls for back-up occur there.

PO Javier-Hernandez stated that § 87(2)(b) began to get combative with them after they approached. He cursed at them, called them “pigs,” and said, “fuck the police.” He was not answering simple questions about what he was doing. PO Javier-Hernandez considered this to be § 87(2)(b) and was concerned that § 87(2)(b) was emotionally disturbed. Based on this, he and PO Treglia decided to take § 87(2)(b) into custody.

PO Treglia could not recall what was discussed with § 87(2)(b) when they first approached him. He recalled that § 87(2)(b) was combative and that he very quickly made the decision to bring him to the stationhouse. Although PO Treglia did mention that he was concerned that § 87(2)(b) was emotionally disturbed, his reasons for taking § 87(2)(b) into custody was that he felt threatened by the gunshot sounds § 87(2)(b) was making.

§ 87(2)(b) was arrested and brought to the 48th Precinct stationhouse. He was later released into the custody of § 87(2)(b) § 87(2)(a) FCT § 380.1 § 784

A person is committing disorderly conduct under subsection 2 (Penal Law 240.20 [2]) when, “with intent to cause public, inconvenience, annoyance, or alarm, or recklessly create a risk thereof... he makes unreasonable noise,” (Board Review 11).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that *allegations A, B, C and D* be *substantiated*.

Allegation E – Force: PO Jason Treglia used physical force against § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) gave consistent testimony that, as § 87(2)(b) was being handcuffed by PO Treglia, § 87(2)(b) approached him to retrieve his phone

from him. When she got close, PO Treglia pushed her on the shoulder with one hand. She did not fall down, but stumbled backwards. § 87(2)(b) stated that this push caused her shoulder to be sore and red the next day.

PO Treglia and PO Javier-Hernandez gave consistent testimony describing the push in similar terms. The officers stated that § 87(2)(b) more so walked into PO Treglia's hand, as opposed to being pushed.

Under the provisions of Patrol Guide procedure 203-11, officers are permitted to use the minimum force necessary to affect an arrest (Board Review 12).

§ 87(2)(g)
Therefore, it is recommended that *allegation C* be *exonerated*.

Allegation F – Force: PO Jason Treglia used physical force against § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) consistently testified that, after § 87(2)(b) was in handcuffs, PO Treglia pushed him against the car, and then pushed him down so that his head collided with the top of the trunk. § 87(2)(b) who was walking towards the arrest from her nearby apartment building, corroborated that PO Treglia pushed § 87(2)(b)'s head against the car (Board Review 13). § 87(2)(b) sought medical attention at § 87(2)(b) the incident, where he complained of pain to his wrist. § 87(2)(a) PHL § 18(6) Both officers denied that § 87(2)(b) was pushed against the vehicle.

§ 87(2)(g)
Therefore, it is recommended that *allegation D* be closed as *unsubstantiated*.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date